

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kerasha Campbell	Team: Team # 7	CCRB Case #: 200304950	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 06/27/2003 10:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/27/2004	Precinct: 07		
Date/Time CV Reported Sat, 06/28/2003 1:44 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Sat, 06/28/2003 1:44 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Jeffrey Acevedo	00115	896910	007 PCT
2. POM Michael Dannecker	14225	923735	007 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Jeffrey Acevedo	Force: Sgt. Jeffrey Acevedo pointed his gun at § 87(2)(b) and § 87(2)(b)	A . Unfounded
B . POM Michael Dannecker	Force: PO Michael Dannecker pointed his gun at § 87(2)(b) and § 87(2)(b)	B . Unfounded
C . SGT Jeffrey Acevedo	Abuse: Sgt. Jeffrey Acevedo stopped and questioned § 87(2)(b) and § 87(2)(b)	C . Exonerated
D . SGT Jeffrey Acevedo	Abuse: Sgt. Jeffrey Acevedo frisked § 87(2)(b) and § 87(2)(b)	D . Substantiated
E . POM Michael Dannecker	Abuse: PO Michael Dannecker frisked § 87(2)(b) and § 87(2)(b)	E . Substantiated
F . SGT Jeffrey Acevedo	Abuse: Sgt. Jeffrey Acevedo searched § 87(2)(b) and § 87(2)(b)	F . Unfounded
G . POM Michael Dannecker	Abuse: PO Michael Dannecker searched § 87(2)(b) and § 87(2)(b)	G . Unfounded

Synopsis

At approximately 10:45pm on June 27, 2003, PO Michael Dannecker and Sgt. Jeffrey Acevedo of the 7th Precinct anti-crime unit stopped § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) at the corner of § 87(2)(b) and § 87(2)(b) in Manhattan. § 87(2)(b), § 87(2)(b) and § 87(2)(b) alleged that both officers pointed their guns at them and frisked as well as searched § 87(2)(b), § 87(2)(b) and § 87(2)(b). § 87(2)(b), who became upset because he sustained a cut on one of his legs from playing with the other boys, threw a garbage receptacle in the street while the boys were on their way to the store to get napkins to wipe his cut. Subsequent to obtaining the napkins from the store at the corner of § 87(2)(b) and § 87(2)(b) PO Dannecker and Sgt. Acevedo, who witnessed § 87(2)(b) throw the garbage receptacle in the street, stopped the four boys. The boys were then frisked.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b), § 87(2)(b), § 87(2)(b) attorney, was presented as the counsel for § 87(2)(b), § 87(2)(b) and § 87(2)(b). Counsel was present for the interview of the aforementioned boys and also for the photo presentation. Although of the mothers, § 87(2)(b) was the chief proponent in this case, any and all arrangements to interview or speak with any of the boys, with the exception of § 87(2)(b) whose mother refused to participate in any litigation process against the NYPD, were made with § 87(2)(b). Presently, § 87(2)(b) has absolved himself of all the responsibilities of counsel to § 87(2)(b) and company. § 87(2)(b) without any assistance from counsel, is now attempting to file a civil lawsuit against PO Dannecker and Sgt. Acevedo. According to the Law Claims Division at the New York City Comptroller's office, as of yet, neither § 87(2)(b) nor § 87(2)(b) filed a civil law suit for this case.

Summary of Complaint

Initial Complaints to the CCRB

§ 87(2)(b) informed the CCRB on June 28, 2003 that PO Dannecker and Sgt. Acevedo pointed their guns at her son, § 87(2)(b) and his friends as the officers searched them. She further stated that one of the officers had his hands around her son's neck and felt around his private area.

On July 1, 2003, § 87(2)(b) the mother of § 87(2)(b) called the CCRB and said that while on their way to the store, her son and his three friends were stopped by two White male officers. One of the officers pointed his gun in two of the four boys' backs. The boys were also physically molested, searched and the officers felt over their bodies.

Subsequently on July 2, 2003, § 87(2)(b) the mother of § 87(2)(b) called IAB and stated that PO Dannecker and Sgt. Acevedo stopped her son and § 87(2)(b), § 87(2)(b)

§ 87(2)(b) The Internal Affairs Bureau referred this case to the CCRB on July 2, 2003.

Results of Investigation

Overview

On July 18, 2003, the Civilian Complaint Review Board interviewed § 87(2)(b), § 87(2)(b) and § 87(2)(b) at the § 87(2)(b) in Manhattan with the approval of their lawyer, § 87(2)(b), § 87(2)(b), § 87(2)(b) gave approval to the CCRB to interview her son as well as § 87(2)(b) and § 87(2)(b) as per arrangement with their mothers. § 87(2)(b) informed the CCRB that the fourth victim, § 87(2)(b) would not provide a statement to the CCRB and was further not being represented by § 87(2)(b), § 87(2)(b) as his mother fears that the officers would retaliate against her son. Subsequently, however, § 87(2)(b) the

mother of § 87(2)(b) disputed this claim and granted the CCRB approval to interview her son on October 20, 2003. § 87(2)(b), § 87(2)(f)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian Accounts

§ 87(2)(b), § 87(2)(b), § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) The boys, including § 87(2)(b) were playing tag in the park at § 87(2)(b) when § 87(2)(b) sustained a cut on one of his legs. All four boys then walked to the store at the corner of § 87(2)(b) and § 87(2)(b) to obtain napkins for § 87(2)(b) to wipe his cut. After exiting the store, the boys were stopped at the corner of § 87(2)(b) and § 87(2)(b) between the telephone booth and the wall by two White males who exited a yellow taxicab with their guns drawn at about 11:00pm on June 27, 2003. At the time, the boys all stated that § 87(2)(b), § 87(2)(b); § 87(2)(b) and § 87(2)(b) did not know that the two White males were police officers and believed that the males were about to rob them.

Upon approaching the four boys, the two White males pointed their guns at the boys. On September 12, 2003, during a photo presentation, § 87(2)(b) and § 87(2)(b) identified PO Michael Dannecker and Sgt. Jeffrey Acevedo as the subjects in this case. Neither PO Dannecker nor Sgt. Acevedo explained to the boys why they were being stopped. PO Dannecker frisked § 87(2)(b), § 87(2)(b) and § 87(2)(b) while Sgt. Acevedo stood and spoke with § 87(2)(b). The sergeant did not frisk or search § 87(2)(b), § 87(2)(b), § 87(2)(b) or § 87(2)(b). While PO Dannecker frisked and searched § 87(2)(b) and § 87(2)(b) the officer had his gun pointed in the backs of § 87(2)(b) and § 87(2)(b) but placed his gun back in its holster before frisking § 87(2)(b). PO Dannecker also fondled § 87(2)(b) and § 87(2)(b). § 87(2)(b) was the only person who was not frisked or searched according to § 87(2)(b), § 87(2)(b) and § 87(2)(b). Although the boys maintained that they did not know that the two White males were police officers, § 87(2)(b) stated that these were the two males who had stopped, frisked and searched him along with § 87(2)(b) and another friend named § 87(2)(b) a few months prior to this incident. But § 87(2)(b) said that he had never interacted with either PO Dannecker or Sgt. Acevedo prior to this incident. According to these three boys, all four boys went home after the incident.

§ 87(2)(b)

In his interview on October 20, 2003, § 87(2)(b) stated that he knew the two White males were officers because there was an antenna in back of the taxicab and this was not the first time that he had seen officers wearing plainclothes in his neighborhood. § 87(2)(g)

§ 87(2)(b) stated that § 87(2)(b), § 87(2)(b) and § 87(2)(b) knew that PO Dannecker and Sgt. Acevedo were police officers. § 87(2)(b) also said that the officers explained that they saw the boys throw a garbage receptacle in the street and that they should return and pick it up. He also admitted that § 87(2)(b) threw the garbage can in the street on their way to the store to obtain napkins for § 87(2)(b)'s cut. During his interview, § 87(2)(b) was presented with photos of PO Dannecker and Sgt. Acevedo. He identified PO Dannecker as the officer who frisked § 87(2)(b), § 87(2)(b) and § 87(2)(b) and identified Sgt. Acevedo as the officer who frisked him. Therefore, all four boys were frisked, three by PO Dannecker and one by Sgt. Acevedo. § 87(2)(b) denied that PO Dannecker searched and fondled any of the boys. § 87(2)(b) also denied that the officers' approached them with their guns drawn and that PO Dannecker pointed his gun in any of the boys' backs while the officer frisked them. He stated that after the incident they went to a friend's party and on their way to the party, they spoke about the fact that they did not see the officers when § 87(2)(b) threw the garbage receptacle in the street.

Officer Accounts

PO Michael Dannecker was interviewed on September 19, 2003 and Sgt. Jeffrey Acevedo was interviewed on October 15, 2003. § 87(2)(g)

§ 87(2)(b): on June 27, 2003 at about 10:45pm, they stopped four Black males between the ages of § 87(2)(b) at the corner of § 87(2)(b) and § 87(2)(b) in Manhattan. The reason for stopping the males was because

one of them had thrown a garbage receptacle with its content in the street. PO Dannecker and Sgt. Acevedo did not draw or point their guns when they approached the boys or during their interaction with the boys. The boys were frisked, but not searched. After the boys were frisked, the officers instructed them to return and pick up the garbage receptacle. PO Dannecker and Sgt. Acevedo then resumed patrol in their car. PO Dannecker prepared four stop and frisk reports reflecting the officers' interaction with the four boys.

§ 87(2)(g): PO Dannecker said that he frisked two of the four boys while the sergeant frisked the other two boys. PO Dannecker also explained that when they approached the boys, their objective was to reprimand them for throwing the garbage receptacle in the street because they realized that the boys were just children. He further stated that although he was not terribly in fear of his safety, he frisked the two boys because 1) this was standard procedure to ensure his safety, the safety of the sergeant and the safety of the boys, 2) it was late at night and one of the boys had his hands in his pockets, although he removed them immediately when the officer requested him to do so and 3) none of the boys provided identification. Sgt. Acevedo stated that he only frisked one of the four boys while PO Dannecker frisked the other three boys. The sergeant explained that the boys were frisked because after the garbage receptacle was thrown in the street, he saw one of the boys with his hand wrapped in his shirt at his waistline as they ran towards an alley. At the sight of the bulge on the boy's waistline, Sgt. Acevedo suspected that the boy might have been armed. However, it was revealed, even before the sergeant frisked the boy, that it was bloody napkins in the boy's hand and not a weapon. Sgt. Acevedo further justified frisking the boys by stating that one of the boys had his hands in his pockets and PO Dannecker requested him to remove them, but the boy did not immediately do so, although he eventually did.

Stop and Frisk Reports (encl.17a-17d)

The four stop and frisk reports were prepared by PO Dannecker and approved by Sgt. Acevedo. The reports mistakenly list the date of incident as June 28, 2003 and ascribe the same course of action to each boy. All the reports state that each boy was stopped and frisked because each was suspected of being in possession of a weapon, each boy displayed violent behavior; each boy had his hands in his pockets and was disorderly by throwing garbage in the street. The reports further reflect that each boy refused to comply with the officers' instructions and provided inconsistent response to the officers' questions. No weapons were recovered on any of the boys and the boys were not searched.

Memo Book Entry

The memo book entries for both PO Dannecker and Sgt. Acevedo document that the officers stopped four Black males for being disorderly and throwing a garbage receptacle in the street. There is no documentation in either memo book that the boys were suspected of being in possession of a weapon as recorded on the stop and frisk reports.

Additional Investigative Actions

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) arrest conviction history

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Sgt. Acevedo's CCRB History

Sgt. Acevedo has never been disciplined as a result of a substantiated CCRB complaint.

PO Dannecker's CCRB History

PO Dannecker has never been disciplined as a result of a substantiated CCRB complaint.

Conclusions and Recommendations

Undisputed facts

PO Dannecker and Sgt. Acevedo stopped § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) because one of them threw a garbage receptacle in the street. The boys were frisked, but not searched.

Disputed facts

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Determination of facts

PO Dannecker and Sgt. Acevedo stopped the four boys for throwing a garbage receptacle in the street. § 87(2)(g)
[REDACTED]
[REDACTED]

Credibility analysis of victims

§ 87(2)(b) the mother of § 87(2)(b) and the individual who championed the issue of filing a lawsuit against the New York City Police Department, admittedly asked § 87(2)(b), § 87(2)(b) and § 87(2)(b) to write a statement about the incident and then brought the boys to the incident location to reenact the incident prior to contacting § 87(2)(b), § 87(2)(b) and the CCRB. § 87(2)(b), § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(b) stated to the CCRB that when the officers exited their vehicle, their guns were not drawn or pointed at any of them. Furthermore, at no point during the stop did the officers point their guns at the boys while they conducted the frisks. None of the boys were searched and the officers did not repeatedly fondle any of the boys. Moreover, the officers informed the boys that they were being stopped because they saw them throw the garbage receptacle in the street. § 87(2)(b) informed the CCRB that the officers only frisked them and then instructed them to pick up the garbage receptacle. § 87(2)(b), § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Credibility analysis of officers

§ 87(2)(g)
[REDACTED]
[REDACTED] The sergeant asserted that after the boys threw the garbage receptacle in the street they began to run and one of them had his hand wrapped in his shirt at his waistline, which led the sergeant to conclude that the boy could possibly have a weapon. However, upon approaching the boy whom the sergeant suspected of being in possession of a weapon, the sergeant found that it was bloody napkins in his hand and not a weapon. § 87(2)(b)
[REDACTED]

stated that the boys were stopped after § 87(2)(b) who sustained the cut on his leg, went to the store and received napkins for his cut, not before. § 87(2)(b), § 87(2)(g)

PO Dannecker never mentioned that the boys were running prior to the stop or that while the boys were running one of them had his hand wrapped in his shirt at his waistline, § 87(2)(g)

Additionally, PO Dannecker never stated to the CCRB that when they saw the boys walking after they threw the receptacle in the street, that their actions led the officers to suspect them of having a weapon. In fact, PO Dannecker stated that he frisked the boys for the officers' safety since it was late at night, one of the boys had his hands in his pockets, the boys did not provide any identification, and they denied throwing the garbage receptacle in the street. PO Dannecker further stated that when they approached the boys, they realized that they were just children and the objective at this point was to reprimand them for throwing the garbage receptacle in the street. § 87(2)(b), § 87(2)(g)

§ 87(2)(g)

The officers' memo book entries only reflect that the boys were stopped for throwing garbage in the street and for being disorderly.

§ 87(2)(g)

PO Dannecker told the CCRB that when he asked the boy to remove his hands, the boy immediately removed them from his pockets. § 87(2)(g)

Allegation A: Sgt. Jeffrey Acevedo pointed his gun at § 87(2)(b), § 87(2)(b), § 87(2)(b) **and** § 87(2)(b)

Allegation B: PO Michael Dannecker pointed his gun at § 87(2)(b), § 87(2)(b), § 87(2)(b) § 87(2)(b) **and** § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

Allegation C: Sgt. Jeffrey Acevedo stopped § 87(2)(b), § 87(2)(b), § 87(2)(b) **and** § 87(2)(b) § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) advanced the notion that they did not know the reason for the officers stopping them because neither one of the officers explained to them the reason for the stop. However, § 87(2)(b) admitted to the CCRB that one of the boys threw a garbage receptacle in the street before the officers stopped them and that the officers informed them that they witnessed this incident before ordering them to return and pick up the receptacle. § 87(2)(g)

§ 87(2)(g)

Allegation D: Sgt. Jeffrey Acevedo frisked § 87(2)(b), § 87(2)(b), § 87(2)(b) **and** § 87(2)(b)

§ 87(2)(b)

Allegation E: PO Michael Dannecker frisked § 87(2)(b), § 87(2)(b), § 87(2)(b) **and**

§ 87(2)(b)

§ 87(2)(g)

PO Dannecker and Sgt. Acevedo admit they frisked the boys with whom they say they dealt and PO Dannecker prepared four stop and frisk reports, which document that all four boys were in fact frisked. PO Dannecker's primary argument for conducting the frisk of the boys was for his safety, Sgt. Acevedo's safety and the boys' safety. However, the sergeant emphatically stated that the officers reasonably suspected the boys of being in possession of a weapon, since after the boys violently kicked down the garbage receptacle, the boys ran away and one of them had his hand wrapped in his shirt at his waistline. PO Dannecker, however, never stated that the boys were at any point suspected of being in possession of a weapon or displayed any acts that led the officers to believe that any one of them was armed. Furthermore, § 87(2)(b) stated that all the boys walked to the store after the garbage can was thrown in the street to get the napkins for § 87(2)(b) to wipe his cut. § 87(2)(g)

Criminal Procedure Law sections 140.50 (1) and (3) precludes officers from frisking or searching civilians unless the officers know that these civilians have or are about to commit a felony or an A or B misdemeanor. Frisks are not permitted when a stop is only for a violation unless the defendant who is charged with a violation is uncooperative while the officer attempts to process him, see Kamins' Search and Seizure, pg. 178, citing People v. King, 65 NY2d 702, 492 NYS2d 1 (1985). (encl. 2b-c)

§ 87(2)(b), § 87(2)(g)

Sgt. Acevedo has been on the force for thirteen years, one of which he has spent supervising the anti crime division at the 7th Precinct while PO Dannecker has been on the force for four years, a year and half of which he has been assigned to anti-crime. § 87(2)(g)

Allegation F: Sgt. Jeffrey Acevedo searched § 87(2)(b), § 87(2)(b) **and** § 87(2)(b)

Allegation G: Sgt. PO Michael Dannecker searched § 87(2)(b), § 87(2)(b) **and** § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) stated that the officers did not search any of the boys' pockets. PO Dannecker and Sgt. Acevedo denied entering any of the boys' pockets. § 87(2)(b), § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: